

BOARD OF SUPERVISORS CITY AND COUNTY OF SAN FRANCISCO

MEETING MINUTES

Tuesday, September 10, 2024 - 2:00 PM

**Legislative Chamber, Room 250
City Hall, 1 Dr. Carlton B. Goodlett Place
San Francisco, CA 94102-4689**

Regular Meeting

AARON PESKIN, PRESIDENT

**CONNIE CHAN, MATT DORSEY, JOEL ENGARDIO, RAFAEL MANDELMAN,
MYRNA MELGAR, DEAN PRESTON, HILLARY RONEN, AHSHA SAFAI,
CATHERINE STEFANI, SHAMANN WALTON**

Angela Calvillo, Clerk of the Board

BOARD COMMITTEES

Committee Membership

Budget and Appropriations Committee

Supervisors Chan, Mandelman, Melgar, Walton, Peskin

Budget and Finance Committee

Supervisors Chan, Mandelman, Melgar

Government Audit and Oversight Committee

Supervisors Preston, Stefani, Chan

Land Use and Transportation Committee

Supervisors Melgar, Preston, Peskin

Public Safety and Neighborhood Services Committee

Supervisors Stefani, Engardio, Dorsey

Rules Committee

Supervisors Walton, Safai, Peskin

Meeting Days

Wednesday

1:30 PM

Wednesday

9:00 AM

1st and 3rd Thursday

10:00 AM

Monday

1:30 PM

2nd and 4th Thursday

10:00 AM

Monday

10:00 AM

First-named Supervisor is Chair, Second-named Supervisor is Vice-Chair of the Committee.

Members Present: Connie Chan, Matt Dorsey, Joel Engardio, Rafael Mandelman, Myrna Melgar, Aaron Peskin, Dean Preston, Hillary Ronen, Ahsha Safai, Catherine Stefani, and Shamann Walton

The Board of Supervisors of the City and County of San Francisco met in regular session on Tuesday, September 10, 2024, with President Aaron Peskin presiding.

President Peskin called the meeting to order at 2:00 p.m.

ROLL CALL AND PLEDGE OF ALLEGIANCE

On the call of the roll, Supervisors Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Stefani, and Walton were noted present.

Supervisors Ronen and Safai were noted not present.

A quorum of the Board was present.

President Peskin presented the ancestral homeland acknowledgement of the Ramaytush Ohlone, who are the original inhabitants of the San Francisco Peninsula, pursuant to Board Rule 4.7.1.

President Peskin led the Members of the Board and the audience in the Pledge of Allegiance to the Flag of the United States of America, pursuant to Board Rule 4.9.

COMMUNICATIONS

(Written comments may be submitted through email (bos@sfgov.org) or the U.S. Postal Service at City Hall, 1 Dr. Carlton B. Goodlett Place, Room 244, San Francisco, CA 94102.)

Supervisor Safai was noted present at 2:01 p.m.

Supervisor Ronen was noted present at 2:02 p.m.

APPROVAL OF MEETING MINUTES

President Peskin inquired whether a Member of the Board had any corrections to the July 30, 2024, Regular Board Meeting Minutes, as presented. There were no corrections requested from any Member of the Board.

Supervisor Stefani, seconded by Supervisor Walton, moved to approve the July 30, 2024, Regular Board Meeting Minutes, as presented. The motion carried by the following vote, following general public comment:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

AGENDA CHANGES

There were no agenda changes.

SPECIAL ORDER 2:00 P.M. - Mayor's Appearance Before The Board

There were no questions submitted from the eligible Supervisors representing Districts 9, 10, or 11. Mayor London N. Breed addressed the Board of Supervisors regarding new reforms she will be introducing around City contracts and grants to ensure they are awarded fairly and to ensure funds are being used properly. Mayor Breed spoke on the imperativeness for City business to be handled according to all applicable laws because trust in government is essential. She further spoke on the good government reforms already effectuated, Executive Directives that she's issued to change policies around transparency and accountability, her appointment of good government leaders, and ballot measures that have led to direct benefits to the City and the public. Following public comment this matter was filed. No further action was taken.

CONSENT AGENDA

Recommendations of the Budget and Finance Committee

240723 [Authorizing Certificates of Participation - Concourse Garage Project - Not to Exceed \$29,000,000]

Sponsors: Mayor; Mandelman and Melgar

Ordinance authorizing the execution and delivery of Certificates of Participation on a tax-exempt or taxable basis evidencing and representing an aggregate principal amount of not to exceed \$29,000,000 to fund all or a portion of the acquisition of the Concourse Garage; authorizing the issuance of commercial paper notes in advance of the delivery of the Certificates; approving the form of Trust Agreement between the City and County of San Francisco and the Trustee (including certain indemnities contained therein); authorizing the selection of the Trustee by the Director of Public Finance; approving respective forms of a Property Lease and a Lease Agreement, each between the City and County of San Francisco and the Trustee for the lease and lease back of certain property and facilities of the City; approving the forms of Purchase Contract, Official Notice of Sale, and Notice of Intention to Sell Certificates; directing the publication of the Notice of Intention to Sell Certificates; approving the form of the Preliminary Official Statement and the form and execution of the Official Statement relating to the sale of the Certificates; approving the form of the Continuing Disclosure Certificate; granting general authority to City officials to take necessary actions in connection with the authorization, execution, sale and delivery of the Certificates, including termination of the Ground Lease and transfer of the Concourse Garage property and related property to the City and County of San Francisco under the jurisdiction of the Recreation and Park Commission; approving modifications to documents and agreements; declaring the City's intent to reimburse certain expenditures; and ratifying previous actions taken in connection therewith, as defined herein. (Fiscal Impact)

Ordinance No. 217-24

FINALLY PASSED

240728 [Business and Tax Regulations Code - Transfer Tax Reduction for Union Labor-Built and Union Pension Fund-Financed Housing]**Sponsors: Safai; Chan and Melgar**

Ordinance amending the Business and Tax Regulations Code to reduce the real property transfer tax rates from 5.5% to 3% when the consideration or value of the interest or property conveyed is at least \$10,000,000 but less than \$25,000,000; and from 6% to 3% when the consideration or value of the interest or property conveyed equals or exceeds \$25,000,000 for transfers of certain properties with at least 12% rent-restricted affordable units, that were constructed using union labor, and had a debt or equity investment of at least \$25,000,000 from a union pension fund at the time of the transfer; and affirming the Planning Department's determination under the California Environmental Quality Act. (Fiscal Impact)

Ordinance No. 225-24**FINALLY PASSED****The foregoing items were acted upon by the following vote:**

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

REGULAR AGENDA**NEW BUSINESS****Recommendations of the Budget and Finance Committee****240765 [De-Appropriation and Appropriation - District 7 General City Responsibility - District 7 Projects and Services - Various Departments - \$549,950 - FY2024-2025]****Sponsor: Melgar**

Ordinance de-appropriating \$399,950 from General City Responsibility and \$150,000 from Municipal Transportation Agency (MTA) and re-appropriating \$50,000 to the Arts Commission (ART) for mural artwork in West Portal; \$125,000 to Children, Youth and Their Families (CHF) for picnic tables at Commodore Sloat Elementary, Playground improvements and seating at Sunnyside Elementary, and a new playground at Jefferson Elementary; \$162,750 to the Department of Public Works (DPW) for maintenance of Westwood Park pillars, benches at Monterey and Genessee, parklet planting in Inner Sunset, median planting on Marietta Drive, and fence repairs at Edgehill Way; \$13,200 to the San Francisco Public Library (LIB) for Digital Literacy courses; \$49,000 to the Department of Recreation and Parks (REC) for renovation of the Marview Way Trail; and \$150,000 to the Municipal Transportation Agency (MTA) for traffic calming on Yerba Buena Avenue, Ulloa Street, Laguna Honda Boulevard, Rockaway Avenue, and Monterey Boulevard and a Public Parklet on Slow Hearst in Fiscal Year (FY) 2024-2025. (Fiscal Impact)

PASSED ON FIRST READING by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

240737 [Real Property Acquisition - Easement from San Mateo County Flood and Sea Level Rise Resiliency District - Not To Exceed \$83,500]

Resolution approving the terms and conditions and authorizing the General Manager of the San Francisco Public Utilities Commission to execute a Purchase and Sale Agreement and Easement Deed with San Mateo County Flood and Sea Level Rise Resiliency District for the acquisition of a 1,386-square-foot easement for an aerial water pipeline crossing and associated footings and braces across a portion of San Mateo County Assessor's Parcel Block No. 011-322-200 for \$70,000 plus an administrative fee of \$3,500 and up to \$10,000 in closing costs, for a total amount not to exceed \$83,500 pursuant to Charter, Section 9.118. (Public Utilities Commission)

Resolution No. 457-24

ADOPTED by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

240743 [Accept and Expend Grant - Retroactive - Larkin Street Youth Services - Rising Up - Office of Financial Empowerment - \$181,368]

Sponsor: Mayor

Resolution retroactively authorizing the Office of the Treasurer and Tax Collector to accept and expend a grant increase in amount of \$65,000 for a total amount of \$181,368 from Larkin Street Youth Services for the purpose of providing one-on-one financial coaching to Transitional Age Youth through the Rising Up campaign from July 1, 2023, through October 31, 2024. (Treasurer-Tax Collector)

Resolution No. 458-24

ADOPTED by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

240747 [Real Property Lease - THE KELSEY CIVIC CENTER, LLC - 240 Van Ness Avenue - Disability Community Cultural Center - Annual Base Rent \$60,353 - Tenant Improvements City Contribution Not to Exceed \$1,167,500]

Sponsors: Peskin; Mandelman and Preston

Resolution approving and authorizing the Director of Property, on behalf of the Human Services Agency, Department of Disability and Aging Services, to execute a Lease agreement with THE KELSEY CIVIC CENTER, LLC, for use of the ground floor commercial space at 240 Van Ness Avenue as a Disability Community Cultural Center for the term of 15 years with three five-year options to extend and an annual base rent of \$60,353 with 2% annual increases beginning January 1, 2026, effective upon approval of this Resolution; authorizing the City's contribution of up to \$1,167,500 towards the cost of tenant improvements; and authorizing the Director of Property to execute any amendments, options to extend the agreement term, make certain modifications and take certain actions that do not materially increase the obligations or liabilities to the City, do not materially decrease the benefits to the City and are necessary or advisable to effectuate the purposes of the lease agreement or this Resolution.
(Fiscal Impact)

Supervisor Preston requested to be added as a co-sponsor.

Resolution No. 459-24

ADOPTED by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

240753 [Agreement Amendment - McMillen Jacobs Associates (dba Delve Underground) - Engineering Services for the Lower Alemany Area Stormwater Improvement Project - Not to Exceed \$17,800,000]

Resolution approving Amendment No. 2 to Contract No. PRO.0164, Engineering Services for the Lower Alemany Area Stormwater Improvement Project, between the City, acting by and through the San Francisco Public Utilities Commission (SFPUC), and McMillen Jacobs Associates (dba Delve Underground), increasing the agreement by \$8,300,000 for a total not to exceed amount of \$17,800,000 and extending the duration by three years, for a total term of nine years from January 18, 2022, through January 17, 2031, due to additional engineering needed to perform analyses, refine design as part of the Caltrans encroachment permit, and to provide increased engineering support during construction, pursuant to Charter, Section 9.118; and to authorize the SFPUC to enter into amendments or modifications to Amendment No. 2 that do not materially increase the obligations or liabilities to the City and are necessary to effectuate the purposes of Amendment No. 2. (Public Utilities Commission)
(Fiscal Impact)

Resolution No. 460-24

ADOPTED by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

240813 [Apply for Grant Application - California Department of Housing and Community Development - Local Housing Trust Fund Program Grant - Not to Exceed \$5,000,000]

Sponsors: Mayor; Mandelman and Preston

Resolution authorizing the Mayor's Office of Housing and Community Development on behalf of the City and County of San Francisco to execute and submit a grant application for a grant to fund affordable housing development under the California Department of Housing and Community Development's Local Housing Trust Fund Program, for an amount not to exceed \$5,000,000.
(Mayor's Office of Housing and Community Development)

Supervisor Preston requested to be added as a co-sponsor.

Resolution No. 456-24

ADOPTED by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

SPECIAL ORDER 2:30 P.M. - Recognition of Commendations

Without objection, Rule 5.36 of the Rules of the Board of Supervisors was suspended to grant privilege of the floor to the following guest(s).

Supervisor Mandelman introduced, welcomed, and presented a Certificate of Honor to Martha Cohen, Director of Special Events (Mayor's Office), on the occasion of her birthday and in recognition of her countless accomplishments organizing and producing the most notable events of the City over the last 30 years.

Supervisor Stefani introduced, welcomed, and presented a Certificate of Honor to Canine Companions, accepted by David Lasker and Janet Corsetti, on the occasion of National Service Dog Awareness Month and in recognition of their accomplishments providing service dogs to adults, children and veterans with disabilities and facility dogs to professionals.

Supervisor Ronen introduced, welcomed, and presented a Certificate of Honor to Nick Gregoratos, Prison Legal Services (Sheriff's Department), on the occasion of his retirement after 27 years of public service and in recognition of his dedication improving conditions of confinement and seeking justice for those incarcerated.

COMMITTEE REPORTS

Recommendation of the Government Audit and Oversight Committee

240762 [Settlement of Lawsuit - Build Group, Inc. - \$350,000]

Ordinance authorizing settlement of the lawsuit filed by David M. Schmitt. against Build Group, Inc., which then filed a cross-complaint against the City and County of San Francisco, for \$350,000; the lawsuit was filed on August 30, 2022, in San Francisco Superior Court, Case No. CGC-22-601503, entitled David M. Schmitt v. Build Group, Inc. et al.; the lawsuit involves allegations of breach of contract arising from cost overruns and delay on the Zuckerberg San Francisco General Hospital Building 5 Rehabilitation Department Relocation Project; other material terms of the settlement are a complete release of claims relating to the project, including any pass through claims from David M. Schmitt or other subcontractors of Build Group, Inc. (City Attorney)

PASSED ON FIRST READING by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

Recommendation of the Rules Committee

240636 [Administrative Code - Use of Unassisted Aerial Vehicles]

Sponsors: Mayor; Dorsey, Mandelman and Engardio

Ordinance approving the Police Department's inventory and policy relating to the use of unassisted aerial vehicles, or drones, and making findings consistent with the criteria in State law. (Police Department)

(Supervisors Ronen and Walton voted No on First Reading.)

(This item was not sent as a committee report.)

ROLL CALL FOR INTRODUCTIONS

See Legislation Introduced below.

PUBLIC COMMENT

Mark; shared his personal experiences and religious views.

Speaker; shared the plight of taxi medallion holders and pleaded for help with debt incurred and loss of business to ride sharing companies.

Speaker; shared the plight of taxi medallion holders and pleaded for help with debt incurred and loss of business to ride sharing companies.

Jordan Davis; expressed concerns regarding shelters and various City officials.

Lea McGeever; expressed a multitude of various grievances.

Leonard Priestly; spoke on behalf of the San Francisco Special Police Officers Association and pleaded for assistance with funding.

Speaker; spoke on behalf of the San Francisco Special Police Officers Association and pleaded for assistance with funding.

Evan Morgan; spoke on behalf of the San Francisco Special Police Officers Association and pleaded for assistance with funding.

Speaker; spoke on behalf of the San Francisco Special Police Officers Association and pleaded for assistance with funding.

Jeffrey Galbraya, Jr.; spoke on behalf of the San Francisco Special Police Officers Association and pleaded for assistance with funding.

Susan Porter Backstead; spoke on behalf of "Unite Against Hate" and invited the Board to upcoming events.

Francisco Da Costa; expressed support of the taxi medallion holders and concern around the disbursement of certain funds.

Thierry Fill; shared concerns regarding the rules of existence, beauty, and joy.

FOR ADOPTION WITHOUT COMMITTEE REFERENCE

240852 [Transit Month - September 2024]

Sponsors: Mandelman; Dorsey, Ronen, Melgar, Safai, Engardio, Stefani, Walton, Preston and Peskin

Resolution proclaiming September 2024 as the Ninth Annual San Francisco Transit Month in the City and County of San Francisco.

Resolution No. 464-24

ADOPTED

240853 [Use Agreement - Retroactive - CSUITEMUSIC, LLC - Documentary "SFPD Journey to Justice"]

Sponsors: Melgar; Safai

Resolution retroactively authorizing the San Francisco Police Department ("SFPD") to enter into a Use Agreement with CSUITEMUSIC, LLC ("Producer") to develop and produce a documentary, entitled "SFPD Journey to Justice," about Sojourn to the Past, a retracing of the Civil Rights Movement and its connection to the modern policing profession, granting all necessary trademark licenses and rights to traditional and digital networks. (Police Department)

Supervisor Safai requested to be added as a co-sponsor.

Resolution No. 461-24

ADOPTED

240854 [Consolidation of Elections Scheduled for November 5, 2024]

Sponsor: Peskin

Resolution consolidating the following elections, all of which will be held on November 5, 2024, the State of California General Election; the City and County of San Francisco Municipal Election; City and County of San Francisco's Special Bond Election; the Bay Area Rapid Transit District Election; the San Francisco Unified School District Board of Education (School Board) Election; the School Board Special Election for General Obligation Bonds; and the San Francisco Community College Board of Trustees Election; and providing that the election precincts, voting places, and officers for these elections shall be the same as for the State General Election.

Resolution No. 462-24

ADOPTED

240855 [Approval of a 180-Day Extension for Planning Commission Review of New Rooftop Floor Area or Building Volume on Noncomplying Structure at 1896 Pacific Avenue (File No. 240729)]

Sponsor: Stefani

Resolution extending by 180 days the prescribed time within which the Planning Commission may render its decision on an Ordinance (File No. 240729) amending the Planning Code to permit new floor area or building volume on the rooftop of a noncomplying structure located at 1896 Pacific Avenue, on Assessor's Parcel Block No. 0576, Lot Nos. 27-44; affirming the Planning Department's determination under the California Environmental Quality Act; making public necessity, convenience, and welfare findings under Planning Code, Section 302; and making findings of consistency with the General Plan, and the eight priority policies of Planning Code, Section 101.1.

Resolution No. 463-24

ADOPTED

240856 [National Service Dog Awareness Month - September 2024]

Sponsors: Stefani; Ronen and Mandelman

Resolution recognizing September 2024 as National Service Dog Awareness Month in the City and County of San Francisco.

Supervisors Ronen and Mandelman requested to be added as co-sponsors.

Resolution No. 465-24

ADOPTED

The foregoing items were acted upon by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

IMPERATIVE AGENDA

There were no imperative agenda items.

LEGISLATION INTRODUCED AT ROLL CALL

Introduced by a Supervisor or the Mayor

Pursuant to Charter, Section 2.105, an Ordinance or Resolution may be introduced before the Board of Supervisors by a Member of the Board, a Committee of the Board, or the Mayor and shall be referred to and reported upon by an appropriate Committee of the Board.

ORDINANCES

240870 [Administrative Code - Catastrophic Illness Programs]

Sponsors: Mayor; Chan

Ordinance amending the Administrative Code to authorize the Department of Human Resources to carry out various functions in the administration of the T.J. Anthony Employee Catastrophic Illness Program for City employees and the Catastrophic Illness Program for Family Members of City employees. (Human Resources Department)

09/10/24; ASSIGNED UNDER 30 DAY RULE to Rules Committee, expires on 10/10/2024.

240871 [Administrative Code - Shelter Monitoring Committee and Shelter Standards of Care]

Sponsors: Mayor; Walton and Ronen

Ordinance amending the Administrative Code to reduce the frequency of Shelter Monitoring Committee ("Committee") site visits; require the Committee to establish in its bylaws the threshold number of complaints or out-of-compliance findings during a year that would trigger additional site visits; revise eligibility criteria for Seat 1 on the Committee; revise the Standards of Care for City Shelters by establishing requirements for shower stalls with working hot and cold water controls, minimum passing space for sleeping units that are not up against a wall or partition, and signage posting regarding availability of translation services; eliminate the minimum shelter stay requirement for single adult reservations; revise the complaint process and investigation procedure; and update several programmatic terms.

09/10/24; ASSIGNED UNDER 30 DAY RULE to Rules Committee, expires on 10/10/2024.

240872 [Planning Code, Zoning Map - 30 Van Ness Avenue Special Use District; Amendment of Agreement for Sale of Real Estate]

Sponsors: Mayor; Dorsey

Ordinance amending the Planning Code and Zoning Map to create the 30 Van Ness Avenue Special Use District, in the area generally bound by Fell Street to the north, Market Street to the east and south, and Van Ness Avenue to the west; modifying the Notice of Special Restrictions related to inclusionary housing obligations under the Agreement for Sale of Real Estate between the City and 30 Van Ness Development LLC; affirming the Planning Department's determination under the California Environmental Quality Act; making findings of consistency with the General Plan, and the eight priority policies of Planning Code, Section 101.1; and making public necessity, convenience, and welfare findings under Planning Code, Section 302.

09/10/24; ASSIGNED UNDER 30 DAY RULE to Land Use and Transportation Committee, expires on 10/10/2024.

240873 [Planning Code - Inclusionary Housing Ordinance]**Sponsor: Mayor**

Ordinance amending the Planning Code to permit the use of California Debt Limit Allocation Committee tax-exempt bond financing and tax credits under the Tax Credit Allocation Committee for certain affordable housing projects that provide additional affordable units or deeper affordability levels than required by the Inclusionary Housing Ordinance; affirming the Planning Department's determination under the California Environmental Quality Act; making findings of public necessity, convenience, and general welfare findings under Planning Code, Section 302; and making findings of consistency with the General Plan, and the eight priority policies of Planning Code, Section 101.1.

09/10/24; ASSIGNED UNDER 30 DAY RULE to Land Use and Transportation Committee, expires on 10/10/2024.

240874 [Building Code - Change of Use Designation]**Sponsor: Mayor**

Ordinance amending the Building Code to excuse the requirement for professionally prepared architectural drawings for building permits to change certain use designations that do not increase occupant load or occupancy class, or include alterations; and affirming the Planning Department's determination under the California Environmental Quality Act.

09/10/24; ASSIGNED UNDER 30 DAY RULE to Land Use and Transportation Committee, expires on 10/10/2024.

240877 [Redevelopment Plan Amendment - Hunters Point Shipyard]**Sponsors: Mayor; Walton**

Ordinance approving and adopting an amendment to the Redevelopment Plan for the Hunters Point Shipyard Redevelopment Project Area ("HPS") to authorize the transfer of up to 2,050,000 square feet of research and development and office space from HPS Phase 2 to the Bay View Hunters Point Redevelopment Plan Project Area Zone 1 and extend the Redevelopment Plan time limits for HPS Phase 2; directing the Clerk of the Board to transmit a copy of this Ordinance upon its enactment to the Successor Agency; making findings under the California Environmental Quality Act; and making findings of consistency with the General Plan, and the eight priority policies of Planning Code, Section 101.1.

(Fiscal Impact)

09/10/24; ASSIGNED UNDER 30 DAY RULE to Board of Supervisors, expires on 10/10/2024.

240878 [Redevelopment Plan Amendment - Bayview Hunters Point]**Sponsors: Mayor; Walton**

Ordinance approving and adopting an amendment to the Redevelopment Plan for the Bayview Hunters Point Redevelopment Project Area ("BVHP") to authorize the transfer of up to 2,050,000 square feet of research and development and office space from the Hunters Point Shipyard Redevelopment Plan Project Area Phase 2 to BVHP Zone 1 and extend the Redevelopment Plan time limits for BVHP Zone 1; directing the Clerk of the Board to transmit a copy of this Ordinance upon its enactment to the Successor Agency; making findings under the California Environmental Quality Act; and making findings of consistency with the General Plan, and the eight priority policies of Planning Code, Section 101.1.

(Fiscal Impact)

09/10/24; ASSIGNED UNDER 30 DAY RULE to Board of Supervisors, expires on 10/10/2024.

240879 [Planning Code - 524 and 530 Howard Street - Transit Center District Open Space Impact Fee Waiver for 524 Howard Street, LLC]**Sponsor: Dorsey**

Ordinance amending the Planning Code to waive the Transit Center District Open Space Impact Fee for 524 Howard Street, LLC's development project at 524 and 530 Howard Street in recognition of the project's proposed construction of a pedestrian bridge connecting to the Transbay Transit Center's rooftop park; affirming the Planning Commission's determination under the California Environmental Quality Act; and making findings of consistency with the General Plan, and the eight priority policies of Planning Code, Section 101.1, and findings of public necessity, convenience, and general welfare findings under Planning Code, Section 302.

09/10/24; ASSIGNED UNDER 30 DAY RULE to Land Use and Transportation Committee, expires on 10/10/2024.

240880 [Administrative Code - New Construction Exemption from Rent Control]**Sponsors: Peskin; Preston, Chan, Ronen and Walton**

Ordinance amending the Administrative Code to provide that newly constructed dwelling units that first received a certificate of occupancy between June 13, 1979, and November 5, 2024, shall be generally subject to rent control, to the extent authorized by a future modification or repeal of the Costa-Hawkins Rental Housing Act; and making certain changes to clarify existing law regarding rent control exemptions under Costa-Hawkins.

09/10/24; ASSIGNED to Land Use and Transportation Committee.

RESOLUTIONS

240881 [Grant Agreement Amendment - Mission Neighborhood Centers - Homelessness Prevention Assistance - Not to Exceed \$20,633,600]**Sponsor: Mayor**

Resolution approving the first amendment to the grant agreement between Mission Neighborhood Centers and the Department of Homelessness and Supportive Housing ("HSH") for homelessness prevention assistance; extending the grant term by 36 months from June 30, 2025, for a total term of August 1, 2022, through June 30, 2028; increasing the agreement amount by \$13,104,262 for a total amount not to exceed \$20,633,600; and authorizing HSH to enter into any amendments or other modifications to the agreement that do not materially increase the obligations or liabilities, or materially decrease the benefits to the City and are necessary or advisable to effectuate the purposes of the agreement. (Department of Homelessness and Supportive Housing) (Fiscal Impact)

09/10/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

240882 [Ground Lease - Five Keys Schools and Programs - 42 Otis Street - 100% Permanent Supportive Housing - Rent Not to Exceed \$1]**Sponsors: Mayor; Mandelman**

Resolution 1) approving and authorizing the Director of Property and the Executive Director of the Department of Homelessness and Supportive Housing ("HSH") to enter into a Ground Lease with Five Keys Schools and Programs for the real property owned by the City, located at 42 Otis Street (the "Property"), for an initial lease term of five years with 10 automatic extensions of the lease term for an additional period of five years each and a total rent not to exceed \$1 in order to operate the Property as permanent supportive housing; 2) determining in accordance with Administrative Code, Section 23.33 that the below market rent payable under the Ground Lease will serve a public purpose by providing permanent supportive housing for formerly homeless and low-income households; 3) adopting findings declaring that the Property is "exempt surplus land" under the California Surplus Land Act; 4) affirming the Planning Department's determination under the California Environmental Quality Act, and adopting the Planning Department's findings of consistency with the General Plan, and the eight priority policies of the Planning Code, Section 101.1; and 5) authorizing the Director of Property and/or the HSH Executive Director to execute and make certain modifications to the Ground Lease, as defined herein, and take certain actions in furtherance of this Resolution, as defined herein.

(Fiscal Impact)

09/10/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

240883 [Temporary Shelter and Homeless Services - Behested Payment Waiver]**Sponsors: Mayor; Ronen, Mandelman and Engardio**

Resolution authorizing the Office of the Mayor and the Department of Homelessness and Supportive Housing to solicit donations from various private entities and organizations to support the expansion of temporary shelter and other homeless services to support people experiencing homelessness, notwithstanding the Behested Payment Ordinance. (Department of Homelessness and Supportive Housing)

09/10/24; RECEIVED AND ASSIGNED to Government Audit and Oversight Committee.

240884 [Acquisition of Real Property - 3300 Mission Partners L.P. - 3300, 3306, and 3308 Mission Street - 100% Affordable Housing - \$4,151,000 - Ground Lease with Annual Base Rent of \$1 - Loan NTE \$12,440,242 - Limited Payment Guaranty Not to Exceed \$1,000,000]

Sponsors: Mayor; Ronen and Mandelman

Resolution 1) approving and authorizing the Director of Property, on behalf of the San Francisco Mayor's Office of Housing and Community Development ("MOHCD"), to acquire real property located at 3300, 3306, and 3308 Mission Street ("Property") from 3300 Mission Partners L.P. ("Borrower") for \$4,151,000 under an Agreement for Purchase and Sale ("Purchase Agreement"); 2) placing the Property under the jurisdiction of MOHCD for use in constructing affordable housing; 3) approving and authorizing the Director of Property and the Director of MOHCD to enter into a Ground Lease to lease the Property back to the Borrower for a term of 75 years and one 24-year option to extend and an annual base rent of \$1 ("Ground Lease") in order to construct a 100% affordable, 35-unit multifamily rental housing development affordable to low-income households, including one manager unit, and ground floor commercial space (the "Project"); 4) approving and authorizing an Amended and Restated Loan Agreement in an amount not to exceed (NTE) \$12,440,242 for a minimum loan term of 57 years ("Loan Agreement") to finance the development and construction of the Project; 5) approving and authorizing a limited payment guaranty in an amount not to exceed \$1,000,000 from MOHCD for the benefit of Wincopin Circle LLLP ("Limited Payment Guaranty"); 6) adopting findings declaring that the Property is "exempt surplus land" pursuant to the California Surplus Lands Act; 7) determining that the less than market rent payable under the Ground Lease will serve a public purpose by providing affordable housing for low-income households in need, in accordance with Section 23.30 of the Administrative Code; 8) adopting findings that the Project and proposed transactions are consistent with the General Plan, and the eight priority policies of Planning Code, Section 101.1; and 9) authorizing the Director of Property and/or the Director of MOHCD to make certain modifications to the Purchase Agreement, Ground Lease, Loan Agreement, and Limited Payment Guaranty, as defined herein, and take certain actions in furtherance of this Resolution, as defined herein. (Mayor's Office of Housing and Community Development)
(Fiscal Impact)

09/10/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

240885 [Amendment to Tax Increment Allocation Pledge Agreement for Candlestick Point and Phase 2 of the Hunters Point Shipyard Project]

Sponsors: Mayor; Walton

Resolution approving an amendment to the Tax Increment Allocation Pledge Agreement between the City and County of San Francisco and the Office of Community Investment and Infrastructure for the pledge of net available tax increment to finance public improvements and affordable housing in furtherance of the Candlestick Point and Phase 2 of the Hunters Point Shipyard Redevelopment Project; adopting findings under the California Environmental Quality Act; and adopting findings that the agreement is consistent with the General Plan, and eight priority policies of Planning Code, Section 101.1.
(Fiscal Impact)

09/10/24; RECEIVED AND ASSIGNED to Board of Supervisors.

240886 [Accept and Expend Grant - California Coastal Conservancy - Climate Ready Program - \$7,800,000]**Sponsors: Mayor; Dorsey and Mandelman**

Resolution authorizing the Port of San Francisco to accept and expend a grant award in the amount of \$7,800,000 from the California Coastal Conservancy Climate Ready Program, for Southern Embarcadero Resilience and Enhancement Project for the period of October 1, 2024, through May 31, 2027. (Port)

09/10/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

240887 [United Against Hate Week - September 21 through 27, 2024]**Sponsors: Mandelman; Walton, Engardio, Melgar, Stefani, Preston, Ronen, Chan, Dorsey and Safai**

Resolution recognizing the week of September 21 through September 27, 2024, as United Against Hate Week in the City and County of San Francisco.

09/10/24; REFERRED FOR ADOPTION WITHOUT COMMITTEE REFERENCE AGENDA AT THE NEXT BOARD MEETING.

240888 [Mahsa Amini Day - September 16, 2024]**Sponsors: Safai; Mandelman and Preston**

Resolution declaring September 16, 2024, as "Mahsa Amini Day" in the City and County of San Francisco.

09/10/24; REFERRED FOR ADOPTION WITHOUT COMMITTEE REFERENCE AGENDA AT THE NEXT BOARD MEETING.

MOTIONS

240889 [Closed Session - Existing Litigation - United States Environmental Protection Agency - September 24, 2024, at 2:30 p.m.]**Sponsor: Melgar**

Motion that the Board of Supervisors convene in closed session on September 24, 2024, pursuant to California Government Code, Section 54956.9, and San Francisco Administrative Code, Section 67.10(d)(1), for the purpose of conferring with, or receiving advice from, the City Attorney regarding existing litigation in which the City is a party: City and County of San Francisco v. United States Environmental Protection Agency (United States Supreme Court) Case No. 23-753.

09/10/24; REFERRED FOR ADOPTION WITHOUT COMMITTEE REFERENCE AGENDA AT THE NEXT BOARD MEETING.

240875 [Committee of the Whole - Redevelopment Plan Amendments - Bayview Hunters Point Redevelopment Project - Hunters Point Shipyard Project - October 22, 2024, at 3:00 p.m.]**Sponsor: Walton**

Motion scheduling the Board of Supervisors to sit as a Committee of the Whole on October 22, 2024, at 3:00 p.m., to hold a public hearing to consider 1) an Ordinance for the proposed Amendment to the Redevelopment Plan for the Bayview Hunters Point Redevelopment Project Area; 2) an Ordinance for the proposed Amendment to the Redevelopment Plan for the Hunters Point Shipyard Redevelopment Project Area; and 3) a Resolution for the proposed Amendment to the Tax Increment Allocation Pledge Agreement for the Candlestick Point and Phase 2 of the Hunters Point Shipyard Project.

240891 [Appointment, Treasury Oversight Committee - Greg Wagner]

Motion approving/rejecting the Treasurer's nomination of Greg Wagner, for a term ending June 17, 2026, to the Treasury Oversight Committee. (Clerk of the Board)

09/06/24; RECEIVED FROM DEPARTMENT.

09/10/24; RECEIVED AND ASSIGNED to Rules Committee.

240867 [Mayoral Appointment, Public Utilities Commission - Avni Jamdar]

Motion approving/rejecting the Mayor's nomination for the appointment of Avni Jamdar to the Public Utilities Commission, for a term ending August 1, 2028. (Clerk of the Board)

(Charter, Section 4.112, provides that the Board of Supervisors shall confirm the Mayor's appointment by a majority of the Board of Supervisors. There is no deadline for confirmation and the appointment is not effective until the Board takes action. Transmittal date: September 9, 2024.)

09/10/24; RECEIVED AND ASSIGNED to Rules Committee.

240868 [Mayoral Appointment, Public Utilities Commission - Joshua Arce]

Motion approving/rejecting the Mayor's nomination for the appointment of Joshua Arce to the Public Utilities Commission, for a term ending August 1, 2026. (Clerk of the Board)

(Charter, Section 4.112, provides that the Board of Supervisors shall confirm the Mayor's appointment by a majority of the Board of Supervisors. There is no deadline for confirmation and the appointment is not effective until the Board takes action. Transmittal date: September 9, 2024.)

09/10/24; RECEIVED AND ASSIGNED to Rules Committee.

240869 [Mayoral Appointment, Public Utilities Commission - Stephen Leveroni]

Motion approving/rejecting the Mayor's nomination for the appointment of Stephen Leveroni to the Public Utilities Commission, for a term ending August 1, 2028. (Clerk of the Board)

(Charter, Section 4.112, provides that the Board of Supervisors shall confirm the Mayor's appointment by a majority of the Board of Supervisors. There is no deadline for confirmation and the appointment is not effective until the Board takes action. Transmittal date: September 9, 2024.)

09/10/24; RECEIVED AND ASSIGNED to Rules Committee.

Introduced at the Request of a Department

Pursuant to Rules of Order of the Board of Supervisors, Section 2.7.1, Department Heads may submit proposed legislation to the Clerk of the Board, in which case titles of the legislation will be printed at the rear of the next available agenda of the Board.

PROPOSED RESOLUTIONS**240827 [Agreement Amendment - AECOM Technical Services, Inc. - Engineering Services for Dams and Reservoirs - Total Not to Exceed Amount of \$20,000,000]**

Resolution authorizing the General Manager of the San Francisco Public Utilities Commission to execute Amendment No.1 to Contract No. PRO.0138.C with AECOM Technical Services, Inc., increasing the contract by \$9,000,000 for a total not to exceed amount of \$20,000,000 with no change to the term of April 16, 2020, through April 15, 2031, to continue providing planning, design, and engineering support of improvements to various dam and reservoir facilities, pursuant to Charter, Section 9.118(b). (Public Utilities Commission)
(Fiscal Impact)

08/30/24; RECEIVED FROM DEPARTMENT.

09/10/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

240836 [Accept and Expend In-Kind Gift - Deloitte Tax LLP - Climate Tax Advisory Services - Estimated up to \$112,089]**Sponsor: Mandelman**

Resolution authorizing the Environment Department to accept and expend an in-kind gift of pro bono tax services, with an estimated value of \$112,089 for a term of engagement effective upon approval of this Resolution through May 31, 2025, provided by Deloitte Tax LLP, to help the City identify opportunities to obtain federal tax credits for qualifying sustainability activities, and authorizing the Director of the Environment Department or the Director's designee, to enter into and execute the agreement, and amendments thereto, consistent with the proposal and necessary to carry out the purpose of the agreement or this Resolution, as defined herein. (Environment)

08/30/24; RECEIVED FROM DEPARTMENT.

09/10/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

240837 [Contract Agreement - Gillig, LLC - Purchase of 49 Electric Transit Buses - Not to Exceed \$69,417,759.56]

Resolution approving Contract No. 71100 between the City, acting by and through the Office of Contract Administration, and Gillig, LLC for the purchase of 49 40-foot low-floor electric transit buses, for a term of four years starting from December 1, 2024, through November 30, 2028, for a total not to exceed amount of \$69,417,759.56; and to authorize the Purchaser to make necessary, non-material changes to the Contract before its execution. (Airport Commission)
(Fiscal Impact; No Budget and Legislative Analyst Report)

08/30/24; RECEIVED FROM DEPARTMENT.

09/10/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

240838 [Contract Amendment - W.W. Grainger, Inc. - As-Needed Citywide Contract for Industrial Supplies - Not to Exceed \$32,000,000]

Resolution approving the Contract Amendment between the City, acting by and through the Office of Contract Administration (OCA), and W.W. Grainger, Inc. for the purchase of Industrial Supplies by City departments, increasing the amount by \$25,000,000 for a total not to exceed amount of \$32,000,000 with no changes to the term of two years, nine months and 27 days from January 12, 2024, through November 8, 2026; and to authorize OCA to enter into amendments or modifications to the Amendment that do not materially increase the obligations or liabilities to the City and are necessary to effectuate the purposes of Amendment. (Office of Contract Administration) (Fiscal Impact)

08/30/24; RECEIVED FROM DEPARTMENT.

09/10/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

Request Granted

From: Supervisor Matt Dorsey

To: The San Francisco Police Department, the Fire Department, the Emergency Medical Services Agency, the Sheriff's Office, the Office of the District Attorney, and the Department of Public Health.

Requests: Requesting a needs assessment regarding the use of court-mandated drug treatment to abate public drug use in San Francisco.

In Memoriams

Kevin Fisher-Paulson - Board President Aaron Peskin and the entire Board of Supervisors

Emilio Bernardini - Supervisor Catherine Stefani

Adam Arnold Banks - Supervisor Shamann Walton

ADJOURNMENT

There being no further business, the Board adjourned at the hour of 3:34 p.m.

N.B. The Minutes of this meeting set forth all actions taken by the Board of Supervisors on the matters stated, but not necessarily the chronological sequence in which the matters were taken up.

Approved by the Board of Supervisors on October 22, 2024.

Angela Calvillo, Clerk of the Board